

SENATE BILL 275

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 5,
relative to constitutional officer budgets.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 5-1-202, is amended by adding the following as a new subsection:

(d) The offices of sheriff, register, county clerk, assessor of property, and trustee in a county that has adopted a charter form of government shall independently develop the budget for such office and submit the budget directly to the county legislative body. These offices shall adhere to the budget as finally approved by the county legislative body, both in total and in line item detail, except that the offices may approve transfers between line items within the total amount of each category of personnel and operational-maintenance as set forth in the approved budget for any such office. These offices shall submit budget amendments from line items in personnel categories to operational-maintenance categories, and vice versa, to the county legislative body. The county legislative body shall not implement any kind of personnel restrictions or operational maintenance restrictions on these offices.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.